

****Femtech: from apps on the menstrual cycle to those on fertility. Why there is a privacy alarm****
Intervention by Guido Scorza, member of the Authority for the protection of personal data
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It is not the first time this has been discussed, and unfortunately, it will not be the last: apps and connected devices dedicated to the female audience are far from being considered privacy-proof and, often, on the contrary, they are authentic "sieves." Yet, this is an increasingly prominent universe in the lives of hundreds of millions of women around the world. These are the widely used apps that track the menstrual cycle, connected devices that monitor and reveal fertility, fitness solutions, and sexual toys.

****Femtech and privacy, more can be done****

The latest alarm comes from research conducted by Dr. Maryam Mehrnezhad of Royal Holloway University of London, which reports that most companies operating in the so-called Femtech are less concerned about the privacy of app and device users than one might reasonably expect, providing them with less information than necessary, often failing to ask for their consent, and, above all, communicating the collected data to third parties with excessive carelessness.

Most of the time, according to the study, behind these violations there is not malice but ignorance of the rules, while sometimes the driving force is represented by the extraordinary economic value of the data and information collected through apps and connected devices on the market, indeed in the most diverse markets from advertising to insurance, all the way to personnel selection and management.

There is an inverse proportionality between the value of the information being discussed and the attention that industry and market dedicate to the issues of personal data protection in femtech. According to Dr. Mehrnezhad, one of the main problems is that despite the apps and devices in question processing health-related data, most would not be classified as medical devices, resulting in them being software designed, produced, and distributed without the special oversight they deserve and in the absence of any special regulation.

And the GDPR alone would not be sufficient. In fact, looking back in time, search engines suggest a long series of episodes that confirm the conclusions of the study. In 2021, for example, a judge condemned Flo, a menstrual cycle tracking app, for sharing users' health data with Facebook, which used it to show targeted ads, while a 2022 study found that 84% of cycle tracking apps shared data with third parties.

In short, a spotlight needs to be shone on femtech to ensure that, in the sector, privacy gains the centrality it deserves, especially considering the quantity and sensitivity of the personal and particular data circulating within it.